

M/s Sunita Ispat (Pvt.) Ltd. v. U.P. Power Corporation Ltd. & Ors.

High Court of Judicature at Allahabad · Division Bench · 19 January 2016 · WRIT - C No. 62046 of 2010 · **Writ petition dismissed for want of prosecution; interim order vacated.**

HEADNOTE

A consumer who had leased an induction-furnace premises and applied under Clause 4.4(d) of the U.P. Electricity Supply Code, 2005 to transfer the sanctioned load to the lessee challenged recovery of the July 2010 bill still raised in its name, arguing that the occupier was the consumer under Section 2(15) of the Electricity Act, 2003 and Code clause 2.2B. The licensee said bills remain payable by the sanctioned consumer until mutation, and that no Clause 6.5(a) objection had been filed. On 8 October 2010 the Division Bench called for a reply, directed that coercive recovery not be pressed if the July bill plus surcharge or interest was paid within a week, and asked the respondents to decide the pending mutation application. On 19 January 2016, none appearing even in the revised call, the writ was dismissed for want of prosecution and the interim order vacated. The mutation, occupier-liability, and recovery points were not decided.

FACTUAL SUMMARY

M/s Sunita Ispat (Pvt.) Ltd. held a 4000 KVA induction-furnace connection from a 33 kV substation at Muzaffar Nagar. On 17 June 2009 it leased the premises to M/s Bihariji Marketing Pvt. Ltd. and applied under Clause 4.4(d) of the U.P. Electricity Supply Code, 2005 to transfer the sanctioned load, depositing Rs.500. The application stayed pending; bills continued in the petitioner's name. Bihariji paid them from June 2009 to June 2010 but not the July 2010 bill of Rs.32,81,580, payable by 16 August 2010. The licensee issued recovery under the U.P. Government Electricity Undertaking (Recovery of Dues) Act, 1958, including a citation dated 4 October 2010. An earlier writ on the same bill (W.P. No. 57700 of 2010) was withdrawn on 7 October 2010 with liberty to file afresh. On 8 October 2010 the Court stayed coercive recovery if that bill plus surcharge or interest was paid within a week and directed decision of the mutation application. None appeared on the revised call of 19 January 2016.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

mutation of sanctioned load; writ dismissed for want of prosecution

HOLDING

On 8 October 2010 the Court recorded the petitioner's case that a Clause 4.4(d) application to transfer the 4000 KVA sanctioned load to the lessee remained undecided, that the occupier was liable as consumer, and that recovery of the unpaid July 2010 bill had issued against the petitioner; the licensee said bills remain payable by the person in whose name the load is sanctioned until mutation and that no Clause 6.5(a) objection had been filed. It called for a reply, directed that coercive recovery not be pressed if the July 2010 bill plus late-payment surcharge or interest was paid within a week, and directed the respondents to decide the mutation application if made within a week with reference to the 17 June 2009 filing. On 19 January 2016, none appearing for the petitioner even in the revised call, the writ was dismissed for want of prosecution and the interim order vacated, without deciding those points. ¶ 3-4

FLAG Thin procedural disposal. Order-sheet from 8.10.2010 to 19.1.2016. The 8.10.2010 Division Bench (Sunil Ambwani and R.D. Khare, JJ.) recorded the Clause 4.4(d) mutation and occupier-liability contentions and granted the conditional stay; the numbered 19.1.2016 order (paras 1-4) is the disposal. Coram is the disposing bench. Clause 4.4(d) and Clause 6.5(a) are as invoked; they were not construed. Petitioner referred to the 'U.P. Electricity Act, 2003' Section 2(15) (Electricity Act, 2003) and Code 'Section 2.2B'.

PRINCIPLE TAGS

writ-dismissed-for-want-of-prosecution-interim-vacated After a 2010 interlocutory stay of coercive recovery on a Clause 4.4(d) mutation and occupier-liability challenge to a 1958 Act citation, the writ was dismissed for want of prosecution when none appeared even in the revised call, and the interim order was vacated, leaving the mutation and recovery points undecided. ¶ 3-4

NOT DECIDED — WHETHER THE PENDING CLAUSE 4.4(D) APPLICATION TO TRANSFER THE SANCTIONED LOAD TO THE LESSEE SHOULD HAVE BEEN ALLOWED, AND WHETHER BILLS AFTER 17.6.2009 WERE PAYABLE BY THE OCCUPIER-LESSEE RATHER THAN THE PETITIONER

Recorded on 8.10.2010 with a direction to decide the mutation application; never adjudicated. Petitioner relied on Section 2(15) of the Electricity Act, 2003 and Code clause 2.2B. ¶ [order of 8.10.2010](#)

NOT DECIDED — WHETHER RECOVERY UNDER THE U.P. GOVERNMENT ELECTRICITY UNDERTAKING (RECOVERY OF DUES) ACT, 1958 (SECTION 5 ORDER AND CITATION DATED 4.10.2010) WAS VALID AGAINST THE PETITIONER

The 8.10.2010 order stayed coercive recovery only if the July 2010 bill plus surcharge or interest was paid within a week; the 2016 dismissal did not reach the citation. ¶ [order of 8.10.2010](#)

NOT DECIDED — WHETHER THE PETITIONER WAS REQUIRED TO OBJECT UNDER CLAUSE 6.5(A) AND PAY THE BILL BEFORE THE DUE DATE

Licensee's contention on 8.10.2010; not decided. ¶ [order of 8.10.2010](#)